Oregon City: Governance Controversies and Litigation Overlap

Supplemental research memorandum: the 2021 manager dispute, later accountability questions, and potential relevance to Eriksson/Buckhout

Research date: October 12, 2026. Prepared from the supplied article, accessible reporting, primary pleadings and orders, official meeting materials, and the preceding public-records research.

Status: Preliminary research, not a finding of wrongdoing or a legal opinion. Allegations, admissions, judicial rulings, reported events, and possible inferences are distinguished throughout. Some requested case identities and final outcomes remain unverified.

1. Executive conclusions

The 2021 controversy supplies a **specific oversight question**, not proof that the manager or City acted unconstitutionally in the plaintiffs' later dispute: when a resident complains about the manager or decisions the manager approved, who conducts a genuinely independent review?

The most useful newly located materials are:

- **September 20, 2023 official draft minutes:** Konkol asserted the manager's charter responsibility to select staff, while commissioners discussed their input and the relationship between HR, the assistant manager, and manager. This documents a later debate over organizational authority; it does not establish that the 2021 complaint policy remained unchanged. [P1, p. 1]
- **Burgard's September 18, 2025 City answer:** The City acknowledges September 2023 accommodation communications and federal financial assistance to some departments, but denies unlawful discrimination and retaliation. This is a stronger research lead than an untested complaint alone. [P3, pp. 5, 11–13]
- **Nicita v. Holladay, April 4, 2022 final district-court order:** A retaliation claim concerning denial of a substantial fee waiver survived pleading review even though the underlying action was permitted by local law. The court did not find retaliation occurred, and the proposed claims involving Konkol did not survive. [P6, pp. 2–6]
- **Kelvin/Dunlap's May 6, 2015 complaint:** Earlier allegations involve dangerous-building placarding, police-assisted removal, allegedly inadequate notice and review, a vulnerable disabled resident, and a subsequent water disconnection. That is a concrete historical comparator lead, not an adjudicated pattern or DOJ enforcement finding. [P4, pp. 1–2, 5–7, 17–18]

The best-supported narrative is **recurring disputes about accessible review, discretionary enforcement, and accountability for complaints**, with continuity of some leadership. The reviewed record does not establish a unified conspiracy across these cases or that the same individual defendants participated in them all.

2. The 2021 controversy in context

Earlier background: 2019 administrative failures and corrective promises

October 17, 2019 reporting describes Konkol apologizing after a healthy walnut tree on public property was removed without the required permit. The report attributes the failures to communication and staffing problems across departments and describes promised corrective work, including a leadership consultant and consideration of tree-preserving sidewalk practices. It also reports that the supposedly urgent sidewalk repair remained unfinished nearly two months after the tree's removal. [A3]

Relevance: This supports asking what corrective processes were implemented and whether comparable alternatives were evaluated in later sidewalk disputes. It also cuts against saying Konkol invariably refused investigation or acknowledgment of error: the reporting describes an investigation and apology. It is not proof of a constitutional violation, and no link to the plaintiffs' account or the other named defendants was established.

August 2021: neighborhood complaints concerned governance, not just civility

August 6, 2021 reporting describes an August 2 Citizen Involvement Committee request for investigation, followed by O'Donnell's August 4 criticism. The concerns included planning staff allegedly warning developers of forthcoming safety amendments, permitting delays and legal costs, and lapse of a Clackamette Cove dredging permit. O'Donnell questioned whether staff failures were being addressed and why a policy matter had not reached the Commission. Konkol's reported response distinguished a permissible employee-performance executive session from a broader policy discussion that required public treatment. [A2]

Relevance: These were concerns about decision-making, supervision, and transparency. The article reports complaints and criticism, not adjudicated developer favoritism. Konkol's executive-session distinction is not itself evidence of concealment; obtaining the original correspondence and applicable meeting record is essential.

September–October 2021: the dispute over investigation of the manager

The supplied October 13, 2021 article reports a **3–2 October 6 vote against further outside investigation**. The immediate event was Konkol's interruption of a resident's September 1 public comment, directing comments to commissioners rather than staff. HR Director Patrick Foiles reviewed complaints from two Barclay Hills residents and concluded that the resident completed his presentation and was not prevented from speaking. [A1]

O'Donnell and Rocky Smith sought outside review of multiple events. O'Donnell questioned HR evaluating a superior able to fire him; City Attorney Bill Kabeiseman reportedly agreed the policy needed revision. McGriff said she reviewed video and spoke with those involved and opposed spending money on outside investigation. The article also reports the majority's conclusion that staff had followed land-use law and acted without bias. [A1]

What is established here: the reporting documents disagreement about the independence and adequacy of review. It does not establish misconduct, a sham investigation, or motive to protect wrongdoing. McGriff was a commissioner, not mayor, at this time; Rachel Lyles Smith was mayor. The exact roll-call wording should be verified from the October 6 minutes/video rather than inferred from the article.

The December 1, 2021 official minutes show approval of the October 6 minutes as consent-agenda Item 7j. The October 6 minutes themselves, the original complaints, Foiles's report, and any policy revision were not independently obtained in this pass. [P12, p. 2]

3. What may have persisted—and what remains unproved

A. Continued concentration of administrative authority

The September 20, 2023 draft work-session minutes record O'Donnell suggesting Commission approval of the assistant-manager candidate. Konkol responded that the charter made staff selection his responsibility; commissioners could provide input, but the decision remained with him. McGriff questioned whether the assistant-manager position should create a layer between HR and the manager. Konkol said employees would retain access to him. [P1, p. 1]

This is a documented later disagreement about personnel authority and reporting structure involving Konkol, Foiles, O'Donnell, and McGriff. It is **not** evidence of misconduct by the eventual appointee, evidence of a particular hiring decision, or proof that the 2021 complaint-review policy was not repaired.

The current official manager webpage identifies Konkol as manager since 2016, lists supervision of public utilities and City employees, and identifies Alexandra Troutman as assistant manager. It says the Commission can remove the manager and that the manager has no Commission vote. These are authority leads, not a determination of final policymaking authority for every municipal function. [P13]

B. Complaint review still warrants a function-specific examination

The previously reviewed ADA grievance page assigns final grievance resolution to the City Manager or designee. Juxtaposed with the 2021 HR concern, it supports asking how grievances involving the manager's own decisions are routed, who chooses the designee, and whether recusal or independent review is available. It does not automatically establish that the manager reviews himself: the designee provision may matter, and historical versions must be obtained. [O3]

C. Later documentary acknowledgment of procedural inconsistency

The February 2026 utility review describes absent codified water/sewer appeal procedures, reliance on interpretation and past practice, and inconsistent treatment across combined utility charges. Its matrix also identifies internal billing-policy review provisions. This is a later substantive administrative issue, but not proof of an unchanged 2021 HR policy or a single overarching unconstitutional system. [O1, pp. 20–27]

D. Later accommodation complaints are identifiable, but disputed

Burgard alleges failures in September 2023 accommodation processing. The City's answer acknowledges requests and disability-related communications while denying that the requested changes were legally required or that the process was unlawful. The answer also acknowledges internal investigations following complaints against officers. These admissions contradict a categorical claim that the City never investigates anything. The actual investigations, findings, accommodation records, and routing to policymakers remain to be examined. [P2, pp. 8–10; P3, pp. 5–8]

Persistence finding: organizational concentration and recurring review disputes are documented. A continuous unlawful custom, failure to implement the proposed 2021 repair, or bad-faith protection of staff is not established.

4. Involvement of the defendants in the supplied lawsuit

Tony Konkol

- Direct subject of the October 2021 investigation dispute and the 2019 apology reporting. [A1–A3]
- Participated in the September 2023 staffing-authority discussion. [P1]
- Identified in Nicita's proposed amendment as an additional defendant concerning appeal fees and meeting/broadcast records. The amendment's claims involving him did not survive the April 2022 order. **Proposed defendant is not the same as an adjudicated wrongdoer.** [P5, pp. 2, 7–8, 31–39; P6, p. 6]

- Appears in the June 21, 2023 URC minutes where Nicita commented on Williams v. Konkol and URC, Case 22CV26004. That is another case—not a Nicita lawsuit merely because he discussed it. The remarks are public-comment assertions, not a judicial finding about charter preemption. [P11, p. 1]

Alexandra Troutman

The current City webpage confirms her assistant-manager role. The September 2023 minutes concern the position's reporting structure but do not identify her as the candidate. No direct participation by her in the 2021 controversy or the newly inspected Burgard and Kelvin/Dunlap pleadings was verified. Her involvement in the plaintiffs' alleged 2026 denial must be proved through that letter, appointment/delegation records, and historical procedures. Her office title does not establish knowing participation in earlier controversies. [P1; P13; supplied amended complaint]

Todd Kennedy, Ashley Fraijo, Vance Walker, and Ramon Henderson

No involvement by these four individuals in the 2021 manager controversy was verified. None is named in the inspected Burgard complaint/City answer or Kelvin/Dunlap complaint. There is no verified basis here to attribute the older conduct to them individually. Their involvement in the plaintiffs' dispute still requires the actual work orders, communications, account records, and restoration materials. Failure to locate a name is not proof that the person had no involvement in every underlying file.

Important nondefendant overlaps

McGriff appears in the 2021 reporting, the later governance discussions, and Burgard as a defendant. She is discussed in the plaintiffs' attachment but is not named as a defendant in its supplied October 5, 2026 amended caption. O'Donnell and Rocky Smith are documented critics in 2021, not interchangeable members of a uniformly supportive bloc. Kabeiseman's 2021 role should not be attributed to Henderson; they are different attorneys. Foiles and Kersey are also not named defendants in the supplied amendment.

5. Cross-case comparison

5.1 Burgard v. City of Oregon City — strong accommodation-process lead

Verified identity: District of Oregon No. 3:25-cv-01198-AR; complaint filed July 10, 2025. The defendants named in the complaint include the City, County, officers Behan/Hanes/Oden, and McGriff. [P2; D1]

Allegations: disability-related exclusion from zoning/code complaint processes; refusal of an alternative meeting location; lack of coordinator referral; selective enforcement favoring businesses; retaliatory arrest and community hostility. These overlap thematically with the plaintiffs' accommodation, retaliation, and municipal-review allegations, but do not establish those facts. [P2, pp. 5–10, 17–20]

More useful than the complaint alone: The City answer acknowledges September 2023 requests, including a meeting away from police facilities, and an email asserting a protected disability. It denies unlawful failures and disputes the reasonableness of the requests. It acknowledges federal financial assistance to some departments while limiting its concession about statutory coverage. It denies the allegation of failing to maintain an ADA coordinator. [P3, pp. 5, 11–13]

Potential use: Seek coordinator staffing history, common accommodation procedures, the actual 2023 communications, and who received them. The federal-funding acknowledgment is a specific lead for identifying covered departments and agreements; it does not automatically settle Section 504 coverage in this different case. Statements in another case are not automatically binding admissions in the plaintiffs' case.

Chronology: The 2025 filing and answer cannot prove policymaker notice before the June 2024 shutoff. The underlying September 2023 communications could be earlier notice if their content, recipients, and similarity are established. Later service may matter to a later continuing decision, but cannot retroactively supply earlier knowledge.

Outcome limitation: The inspected CourtListener reproduction warns of incomplete coverage and includes July 28, 2026 dismissal of the County following a stipulation. No merits ruling finding City misconduct was located. This is not a certified current docket audit. [D1]

5.2 Kelvin/Dunlap — strongest older operational comparator lead

Verified identity: Kelly Kelvin, Verna Dunlap, and Life Change Transitions Inc. v. City of Oregon City and others, Clackamas County No. CV15050082, complaint dated May 6, 2015. The inspected copy is hosted in DOJ's elder-justice document repository and reproduces a trial pleading. **DOJ hosting does not mean DOJ prosecuted or endorsed the allegations.** [P4, p. 1]

The complaint alleges police/code/building officials entered without consent or warrant, demanded residents leave on short notice, posted dangerous-building restrictions without proper notice or an actual emergency, failed to consider completed repairs, and harmed a disabled older veteran. It alleges subsequent water severance after disruption of tenancy and income. [P4, pp. 2, 5–7, 17–18]

Overlap: dangerous-building authority, notice and inspection procedures, police-assisted removal, disability vulnerability, and interaction between occupancy enforcement and utilities. These are sufficiently specific to justify requesting original enforcement files and the City's response.

Differences: The named employees are Mueller, Roberts, Busch, and unidentified officers—not the plaintiffs' named individual defendants. The alleged sequence is enforcement/eviction followed by water loss, not necessarily water disconnection creating the later occupancy violation. Konkol's current biography places his managerial tenure from 2016, after these events; no personal participation by him was verified. No judgment, settlement, answer, or trial findings establishing the complaint's accusations was obtained. A pleading alone cannot establish a longstanding constitutional violation.

5.3 Nicita — distinguish the civil-rights case from the environmental cases

A. Nicita v. Holladay, No. 3:19-cv-01960-YY

The October 27, 2021 Findings and Recommendations discuss Nicita's proposed claims against Konkol and Riggs, an alleged retaliation campaign, appeal-fee actions, and broadcast/meeting-record issues. The magistrate recommended dismissal, including the Monell theory. [P5]

The controlling next step is essential: On April 4, 2022, Judge Hernández adopted the recommendation except for a retaliation claim against Holladay based on denial of a fee waiver. The court concluded that allegations concerning imposition of a nearly $8,000 financial burden plausibly supported protected activity, chilling effect, and retaliatory motivation. It expressly distinguished tangible government action from harsh official speech. The other claims in the proposed amendment were dismissed with prejudice. [P6, pp. 2–6]

How it can help: It provides particularly relevant local legal reasoning for testing whether otherwise authorized fees or enforcement were imposed for a retaliatory reason. Your proposed comparison is stronger when it identifies actual financial or service deprivation, officials' knowledge of protected petitioning, discretionary alternatives, and contemporaneous motive evidence—not simply disrespect or political disagreement.

How it cannot help: This was plausibility review, not a jury finding of retaliation. It does not prove Konkol's liability; the claims involving him did not survive. It does not eliminate the separate municipal-policy and causation requirements in the plaintiffs' case. A docket reproduction records settlement-related dismissal on January 23, 2024; no settlement terms or admission of liability were obtained. [D2]

B. Environmental/land-use proceedings

Nicita v. City of Oregon City, 317 Or App 709 (2022), concerned the stormwater master plan and design standards, Statewide Planning Goals 2 and 6, and LUBA Nos. 2020-037/039. The Court of Appeals **affirmed** the City's position on the issues presented. This is not a finding of unconstitutional enforcement or developer favoritism. [P7]

A separate LUBA case, No. 2017-123, involving Hackett Hospitality Group, was dismissed at the parties' request on November 28, 2022. The retrieved two-page order does not state settlement terms or adjudicate misconduct. [P8]

The federal docket No. 3:22-cv-00738 is misleading if used as evidence of another substantive federal lawsuit: its docket reproduction says the petition was mistakenly filed in federal district court, counsel confirmed the error, and the case was closed with a fee refund on May 20, 2022. Do not count that clerical episode as an independent adjudication against the City. [D3]

5.4 Hometown Boys — utility/occupancy overlap, significant counterevidence

Verified identity: Hometown Boys LLC v. City of Oregon City, state No. CV13020146 and removed federal No. 3:13-cv-00301-ST. The May 28, 2013 federal order identifies wrongful utility termination, inverse condemnation, contract and other state claims, plus an original federal takings claim. [P9, pp. 1–2]

Contemporaneous reporting describes a dispute over failing water lines on a sliding apartment-site slope, partial disconnection, and fire-water requirements that could affect occupancy. The owner blamed leaking City pipes; the City said land movement broke pipes on private property. This is a genuine utility/occupancy interaction, not evidence of the same alleged debt/barrier strategy. [A4]

The federal court permitted deletion of the federal claim and remand, rejecting the City's forum-manipulation argument and request for remand-related fees. Those are procedural rulings—not findings of wrongful shutoff, retaliation, or bad-faith litigation generally. [P9, pp. 4, 7–10]

Counterevidence: March 5, 2014 reporting describes settlement terms under which the City would no longer maintain water lines on the property, substantially reflecting its prior position. The story said formal Commission approval was expected; the executed agreement was not retrieved. The title's characterization that the City prevailed is journalistic, not a merits judgment. Older coverage identifies manager David Frasher and Public Works Director John Lewis, not the plaintiffs' named defendants. [A5]

5.5 Matheson — insufficient verified municipal-case record

The plaintiffs' attachment identifies a City lawsuit as Clackamas County No. 17CV25621. That register, complaint, answer, and outcome were not independently obtained.

The primary material located is a November 13, 2016 letter by **Anna M. and Mark J. Matheson**, reproduced in the Legislature's public document repository. It concerns alleged lender/servicer foreclosure and mediation misconduct, including dispute over characterization of a residential loan as commercial. It does not substantiate City utility or code-enforcement misconduct, involvement by the plaintiffs' named defendants, or collusion between the City and foreclosure counsel. [P10]

Two legislative URLs returned identical copies of the same letter; they are not independent corroboration. Confirm the municipal-case caption and whether “Anna” is the person referred to as “Anne” in the earlier attachment. Obtain the actual City-case record before advancing the claimed shared-actor or displacement pattern.

6. Potential evidentiary value for this case

Stronger uses

1. **Notice and opportunity to repair:** The 2021 oversight criticisms identify records about policy review. Earlier analogous enforcement litigation may identify notice to the City, but service, routing, substance, and similarity must be demonstrated.

2. **Institutional-process evidence:** Burgard's actual accommodation communications and the City's answer, the 2023 organizational minutes, and the 2026 utility review are concrete leads into how requests and disputes were handled.

3. **Retaliatory financial burdens:** Nicita's final 2022 order provides a carefully bounded legal analogy. Lawful authority to charge does not itself resolve retaliatory motive, but allegations and actual evidence still must satisfy the claim's requirements.

4. **Operational comparators:** Kelvin/Dunlap supports a focused search for dangerous-building, inspection, placarding, emergency, warrant, and notice procedures. Hometown Boys can inform the interaction of water service and occupancy, with substantial safety/engineering differences.

Weaker or improper shortcuts

- Treating a complaint as proof that its allegations occurred.
- Treating settlement, dismissal, or a pleading-stage survival ruling as a finding of liability.
- Calling every adverse official response retaliation or every safety rationale pretext.
- Assuming all staff share the manager's motive or that every department is covered by every federal funding source.
- Using political controversy as a substitute for the underlying constitutional injury and policy-to-injury causal link.
- Inferring coordinated foreclosure conduct from the presence of private lenders in otherwise different disputes.

For Monell, general supervision does not automatically establish final policymaking authority on the particular subject. Ratification requires more than silence or failure to overrule. A training/omission theory must identify the defect, known risk, and how the defect caused the plaintiffs' injury. The prior report's Ninth Circuit instruction references remain the starting framework; case-specific briefing is still required.

Newspaper accounts are useful discovery maps, not substitutes for original reports and testimony. Publicly filed allegations can identify incidents and potential notice, but their admissibility and permissible evidentiary use require separate analysis. Keep a purpose column for every proposed exhibit: notice, policy, authority, motive, comparator, or legal reasoning—not “bad character.”

7. Focused follow-up requests

Manager oversight, 2021–2026

- August 2 CIC investigation request; August 4, September 1, and October 6 meeting packets, approved minutes, video/audio, and correspondence.
- Complaints from the Barclay Hills residents; Foiles's report, scope, interview records, assignment/delegation, and communications concerning outside review.
- The complaint-investigation policy then operative, Kabeiseman's revision advice, subsequent versions, approval history, and any recusal/independent-investigator rules.
- Existing nonprivileged records identifying who handled complaints about Konkol or decisions he personally approved. Request redaction/withholding explanations rather than assuming personnel or legal records are fully open.

Accommodation and utility links

- Burgard's September 2023 request emails, coordinator staffing records, routing, alternatives offered, and legally releasable results of related investigations; avoid indiscriminate requests for private medical records.
- Historical ADA grievance escalation procedures and records specifying when a manager's designee or independent reviewer is used.
- Utility policy versions, authority to halt shutoff, fee-waiver/payment-plan discretion, and actual reasons for rejecting the plaintiffs' proposed resolution.
- Federal-assistance agreements, recipient departments, assurances, and disbursements supporting or limiting the City's Burgard funding statement.

Comparator records and actual outcomes

- Kelvin/Dunlap register, City answer, inspection/placarding records, purported emergency rationale, notices, appeal options, water work orders, and any judgment/settlement.
- Nicita v. Holladay operative pleadings and the executed settlement; fee resolution, waiver vote, and contemporaneous motive evidence. Preserve the distinction between Konkol's proposed claims and the surviving Holladay claim.
- Hometown Boys executed settlement, approved authorization, and final state disposition; do not stop at remand.
- Matheson No. 17CV25621 exact caption, complaint, response, service record, and final disposition.

8. Suggested neutral background narrative

Oregon City's records and reporting identify recurring disagreements over the independence of administrative review and access to discretionary relief. In 2021, neighborhood complaints prompted calls for investigation of management and planning practices, followed by disagreement over whether HR should assess complaints against its own superior. Later official minutes document continuing debate over staff-selection authority and the HR reporting structure. Subsequent litigation raises disability-accommodation and retaliation allegations, while the City's own utility review identifies procedural inconsistency. These materials warrant investigation of the actual policies and decision chains that governed the plaintiffs' requests; they do not, without further evidence, establish a continuous unlawful custom, coordinated displacement scheme, or culpability of every named defendant.

Use that narrative as research background, not as a substitute for the defendant-specific facts and causation required by the supplied screening order.

9. Source register and research limitations

Access date: October 12, 2026 unless marked as a prior reviewed source. PDF pages are one-based file pages. Original PDFs, a source manifest, and selected extracts accompany this supplement. News articles are referenced, not reproduced in full. Court-document copies are not certified docket records.

Reporting

A1: Raymond Rendleman, October 13, 2021, “Oregon City declines investigation into manager's behavior.” Original supplied Pamplin link failed SSL connection; accessible publisher copy was read.

https://oregoncitynewsonline.com/2021/10/13/oregon-city-declines-investigation-into-managers-behavior/

A2: Rendleman, August 6, 2021, “Oregon City neighborhoods call for probe into ‘bad practices.’”

https://oregoncitynewsonline.com/2021/08/06/oregon-city-neighborhoods-call-for-probe-into-bad-practices/

A3: Rendleman, October 17, 2019, manager/tree-cutting controversy.

https://milwaukiereview.com/2019/10/17/oregon-city-manager-apologizes-over-tree-cutting-scandal/

A4/A5: Steve Mayes, Oregonian/OregonLive, February 15, 2013 utility dispute; March 5, 2014 settlement account. Only openly rendered text was read; no subscription controls were bypassed.

https://www.oregonlive.com/oregon-city/2013/02/apartment_owner_sues_oregon_ci.html

https://www.oregonlive.com/oregon-city/2014/03/oregon_city_prevails_in_26_mil.html

Primary documents

P1: September 20, 2023 City Commission work-session draft minutes, p. 1.

https://mccmeetingspublic.blob.core.usgovcloudapi.net/oregoncity-meet-3da43e7f328e42b599e75f80842be3ef/ITEM-Attachment-001-34bd5851f36445269fea4d610d1e7b1f.pdf

P2/P3: Burgard No. 3:25-cv-01198-AR, ECF 2 complaint, 29 pages; ECF 17 City/individual answer, September 18, 2025, 27 pages. Primary filings copied through RECAP.

https://storage.courtlistener.com/recap/gov.uscourts.ord.187643/gov.uscourts.ord.187643.2.0.pdf

https://storage.courtlistener.com/recap/gov.uscourts.ord.187643/gov.uscourts.ord.187643.17.0.pdf

P4: Kelvin/Dunlap/Life Change Transitions complaint, May 6, 2015, CV15050082; 22-page reproduction hosted by DOJ.

https://www.justice.gov/sites/default/files/elderjustice/legacy/2016/01/08/Oregon_Kelvin_Complaint.pdf

P5/P6: Nicita v. Holladay, No. 3:19-cv-01960-YY; ECF 37 October 27, 2021 Findings and Recommendations, 41 pages; ECF 44 April 4, 2022 order, 6 pages. Downloaded from the official GovInfo repository. P6 controls over the contrary portion of P5.

https://www.govinfo.gov/content/pkg/USCOURTS-ord-3_19-cv-01960/pdf/USCOURTS-ord-3_19-cv-01960-0.pdf

https://www.govinfo.gov/content/pkg/USCOURTS-ord-3_19-cv-01960/pdf/USCOURTS-ord-3_19-cv-01960-1.pdf

P7: Nicita environmental appeal, 317 Or App 709 (2022), A177095, official judicial publication copy; related LUBA 2020-037/039 order also retrieved.

https://ojd.contentdm.oclc.org/digital/api/collection/p17027coll5/id/32574/download

https://www.oregon.gov/luba/Docs/Opinions/2021/09-21/20037%20039.pdf

P8: Separate LUBA 2017-123 dismissal, November 28, 2022, 2 pages.

https://www.oregon.gov/luba/Docs/Opinions/2022/11-22/2017-123%20Nicita%20v.%20City%20of%20Oregon%20City%20%28FO%29.pdf

P9: Hometown Boys federal ECF 19, May 28, 2013 remand/amendment order, 10 pages; primary court filing copied through Internet Archive/RECAP.

https://ia800604.us.archive.org/22/items/gov.uscourts.ord.110928/gov.uscourts.ord.110928.19.0.pdf

P10: Matheson November 13, 2016 letter in Legislature repository, 2 pages. Two retrieved endpoints contain identical documents.

https://olis.oregonlegislature.gov/liz/2017R1/Downloads/CommitteeMeetingDocument/98421

https://olis.oregonlegislature.gov/liz/2017R1/Downloads/CommitteeMeetingDocument/99660

P11: June 21, 2023 URC draft minutes, p. 1; Nicita's comments about Williams v. Konkol/URC.

https://mccmeetingspublic.blob.core.usgovcloudapi.net/oregoncity-meet-f836fdd0693b4aba92085e1f8d434fdb/ITEM-Attachment-001-4ec358bd23fc42a7892cdadaed80b25a.pdf

P12: December 1, 2021 regular Commission minutes, p. 2, approval of October 6 minutes.

https://mccmeetings.blob.core.usgovcloudapi.net/oregoncity-pubu/MEET-Minutes-fa3720deda78440b9b58195f52af8aad.pdf

P13: Current official City Manager webpage; historical versions not established.

https://www.orcity.org/197/City-Manager

Docket reproductions—not certified current docket audits

D1: Burgard RECAP docket, coverage warning and last-known July 2026 entries.

https://www.courtlistener.com/docket/70762708/burgard-v-city-of-oregon-city/

D2/D3: Nicita v. Holladay settlement-related dismissal entry and accidentally filed environmental petition docket.

https://www.pacermonitor.com/public/case/31234457/Nicita_v_Holladay_et_al

https://www.pacermonitor.com/public/case/44617702/Nicita_et_al_v_City_of_Oregon_City

Previously reviewed materials

O1: February 10, 2026 utility-review packet, file 8700, pp. 20–27.

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=8700,plainText=false)

O2: August 19, 2026 packet, file 9232, June 10, 2025 draft minutes pp. 173–175 and ADA materials pp. 27–62.

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=9232,plainText=false)

O3: ADA Grievance webpage reviewed in the preceding October 10 report; historical publication/effective date not established.

https://www.orcity.org/3459/ADA-Grievance

Remaining limits: The actual October 6, 2021 complaint report and minutes were not retrieved; no 2021 policy-repair history was verified; no final Kelvin/Dunlap or Matheson disposition was obtained; no executed settlements or confidential discovery were accessed. Search results and snippets were used only as leads where a document could not be retrieved. Named actors were not attributed involvement based solely on office tenure or overlapping institutions.